

SOFTWARE SERVICES AGREEMENT - VERSION A

This Software Services Agreement ("Agreement") is entered into as of January 1, 2024, by and between Acme Corp, a Delaware corporation ("Provider"), and Beta LLC, a California limited liability company ("Customer").

1. Services

Provider agrees to deliver software development and maintenance services as described in each Statement of Work ("SOW") mutually executed by the parties. Provider shall assign a dedicated project manager to each SOW and will commence work within five (5) business days of execution. Provider will use commercially reasonable efforts to meet all deadlines set forth in each SOW.

2. Payment Terms

Customer shall pay all invoices within thirty (30) days of the invoice date. All fees are denominated and payable in United States Dollars (USD). Late payments shall accrue interest at a rate of one and a half percent (1.5%) per month on the outstanding balance. Provider reserves the right to suspend services after sixty (60) days of non-payment.

3. Limitation of Liability

In no event shall either party be liable to the other for any indirect, incidental, special, consequential, or punitive damages. Provider's total cumulative liability arising out of or related to this Agreement shall not exceed Ten Thousand United States Dollars (USD \$10,000), regardless of the cause of action or the theory of liability.

4. Term and Renewal

This Agreement shall commence on the Effective Date and continue for a period of one (1) year ("Initial Term"). Upon expiration of the Initial Term, this Agreement shall automatically renew for successive one-year periods unless either party provides written notice of non-renewal at least thirty (30) days prior to the end of the then-current term.

5. Termination for Convenience

Either party may terminate this Agreement for any reason upon thirty (30) days prior written notice to the other party. Upon termination, Customer shall pay Provider for all services rendered up to and including the effective date of termination. Provider will deliver all work product completed as of the termination date.

6. Intellectual Property

All work product, inventions, and deliverables created by Provider under this Agreement shall be considered works made for hire and shall be the sole and exclusive property of Customer. Provider retains ownership of all pre-existing tools, frameworks, and methodologies used in delivering the services.

7. Confidentiality

Each party agrees to hold the other party's Confidential Information in strict confidence and not to disclose such information to any third party without prior written consent. This obligation shall survive the termination of this Agreement for a period of two (2) years.

8. Governing Law and Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of law provisions. Any disputes arising under this Agreement shall be resolved through binding arbitration in San Francisco, California, under the rules of the American Arbitration Association.

9. Indemnification

Each party shall indemnify and hold harmless the other party from any third-party claims arising out of that party's gross negligence or willful misconduct. Provider shall have no indemnification obligation for claims arising from Customer's misuse of the deliverables.

10. Entire Agreement

This Agreement, together with all SOWs and exhibits, constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior agreements, representations, and understandings. This Agreement may not be amended except by a written instrument signed by authorized representatives of both parties.